

# SENATE . . . . . No. 1642

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## The Commonwealth of Massachusetts

PRESENTED BY:

*Michael D. Brady*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to protecting safety from unlicensed work or trades.

PETITION OF:

| NAME:                        | DISTRICT/ADDRESS:                  |                   |
|------------------------------|------------------------------------|-------------------|
| <i>Michael D. Brady</i>      | <i>Second Plymouth and Norfolk</i> |                   |
| <i>Joan B. Lovely</i>        | <i>Second Essex</i>                | <i>6/17/2025</i>  |
| <i>Steven George Xiarhos</i> | <i>5th Barnstable</i>              | <i>10/27/2025</i> |

# SENATE . . . . . No. 1642

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By Mr. Brady, a petition (accompanied by bill, Senate, No. 1642) of Michael D. Brady for legislation relative to protecting safety from unlicensed work or trades. Public Safety and Homeland Security.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to protecting safety from unlicensed work or trades.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Section 30 of Chapter 148 of the General Laws as appearing in the 2022  
2   Official Edition is hereby amended by striking out the words “punishment whereof is not  
3   otherwise provided for” in lines 3 and 4.

4           SECTION 2. Section 30 of Chapter 148 of the General Laws as appearing in the 2022  
5   Official Edition is hereby further amended by striking out the second sentence in its entirety and  
6   inserting in place thereof:-

7           “Notice may be provided by in-hand service, or by the lawful issuance of a citation  
8   pursuant to chapter 148A”

9           SECTION 3. Section 30 of Chapter 148 of the General Laws as appearing in the 2022  
10   Official Edition is hereby further amended by striking the third sentence in its entirety.

SECTION 4. Section 30 of Chapter 148 of the General Laws as appearing in the 2022 Official Edition is hereby amended by adding, after the first paragraph, the following two paragraphs:-

Any person who performs work without a valid license, certificate, or registration required to be issued by the State Fire Marshal, shall be punished by a fine of not more than \$500, for a first offense.

Any person who loans, sells or otherwise allows another to use his license, certificate or registration issued by the State Fire Marshal, to engage in any work or trade, shall be punished by a fine of not more than \$500, for a first offense.

SECTION 5. Section 34C of Chapter 148 of the General Laws as appearing in the 2022 Official Edition is hereby amended by striking out the figure “\$1,000” in line 7 and inserting in place thereof, “\$1,500”.

SECTION 6. Section 2 of chapter 22D of the General Laws, as so appearing is hereby amended by adding to said section the following new second paragraph: The state fire marshal may make rules and regulations to carry out any particular duty or responsibility specifically mandated by law.

SECTION 7. chapter 148 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after section 33 of said chapter the following new section:

Section 33A. Suspension or Revocation of License; Notice

The marshal may suspend or revoke without a hearing any license, permit or certificate issued under this chapter whenever the holder thereof has committed a violation of any law,

ordinance or bylaw relating to the subject matter of this chapter, or of any rule or regulation of the board of fire prevention regulations established under section four of chapter 22D, in this chapter referred to as the board or any order of the marshal or the head of the fire department, the nature of which would give the marshal reason to believe that the continuing operation by such holder is and will be so seriously improper as to constitute an immediate threat to the public safety.

Upon such suspension or revocation, the marshal shall forthwith send written notice thereof to the holder. Such notice shall specify the time and place of the violation. The marshal, or any person to whom he has delegated his authority, may order the license, permit or certificate of such holder to be delivered to him; and the license, permit or certificate shall not be reissued unless, upon examination or investigation, or after a hearing, the marshal, or his designee determines that the holder shall again be permitted to operate. Said holder shall be entitled to a hearing within thirty days of the suspension or revocation.